

25SMCV02821 25SMCV02821

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

21, 2026

CASE NUMBER

25SMCV02821

MOTION

Motion

for Attorneys' Fees

MOVING PARTIES

Plaintiffs Daniel Chiprut and DTRC Corp

OPPOSING PARTIES

Defendants

Jaguar Land Rover North America, LLC and Jaguar Land Rover Santa Monica

MOTION

This

case arises from allegations that Defendants sold Plaintiffs a 2024 Land Rover Range Rover LWB with defects and failed to repair or replace the vehicle in violation of the Song-Beverly Act.

On

June 4, 2025, Plaintiffs Daniel Chiprut and DTRC Corp. ("Plaintiffs") filed suit against Defendants Jaguar Land Rover North America, LLC and Jaguar Land Rover Santa Monica ("Defendants") alleging three causes of action for violations of the Song-Beverly Act and for violation of Civil Code section 1796.5.

On

March 2, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

Plaintiffs

now move for attorneys' fees and costs in the amount of \$30,152.75, representing \$28,895.50 in attorneys' fees and \$1,257.25 in costs. Defendants oppose the motion and Plaintiff replies.

ANALYSIS

I.

Attorneys'
Fees

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Moreover, Civil Code section

1794, subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have

been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Defendants do not contest that Plaintiff is entitled to recover reasonable attorneys’ fees, costs, and expenses under the Song-Beverly Act. Instead, Defendants contest the reasonableness of the fees sought and request that the fee request be reduced to \$10,000. Specifically, Defendants challenge the hourly rates and the number of hours sought.

a.

Rates

Plaintiffs seek hourly rates of \$595 for Anthony Greco, \$525 for Christopher Urner, \$450 for Jorge L. Acosta’s partner rate, \$350 for Jorge L. Acosta’s associate rate, \$350 for Elana Jason, and \$250 for a law clerk and paralegals.

In support, Plaintiffs provide the California pages from the United States Consumer Law Attorney Fee Survey Report from 2017-2018, demonstrating average attorney rates of \$450, varying from \$350 to \$663 and average paralegal rates of \$143, which Plaintiffs argue should be adjusted upwards by approximately 34% to account for inflation. Plaintiffs also provide examples of recent cases where the requested fees were upheld as reasonable.

In opposition, Defendants cite to cases from 2023 to 2025 where rates of \$375, \$450, \$500, and \$525 were held reasonable.

Ultimately, when accounting for inflation, the rates Plaintiffs seek are consistent with the rates in the cases cited by Defendants, as demonstrated by the cases in which Plaintiffs’ rates were upheld.

Therefore, the Court does not generally find any across-the-board adjustments to the hourly rates to be warranted.

b.

Hours

Defendants argue that the hours sought by Plaintiffs are too high. Defendants argue that the Complaint was a standard Lemon Law boilerplate complaint with no demurrers or motions to strike, cross-complaints, defaults, Doe amendments, or other amendments that settled a month and a half after the answer was filed. Defendants also point out that their own counsel billed only \$9,666.20.

The Court agrees that the fees sought are excessive. For example, a law clerk or paralegal apparently spent 2.8 hours going back and forth with the client in an attempt to obtain initial case documents. That time was not reasonably incurred. Plaintiffs are not entitled to a windfall for failing to provide their own counsel initial case documents. As such, the Court reduces the fee request by \$700.

Further, the Court finds that Attorney Acosta spent 0.6 hours at the associate rate of \$350 and 0.4 hours at the partner rate of \$450 on preparing the attorney-client agreement. The Court also finds this time to be unreasonable and not recoupable, resulting in a further reduction of \$390.

Further, both attorney Acosta and attorney Urner spent substantial time reviewing the case file. As such, the Court reduces the 1 hour billed by Urner on these duplicative tasks for a reduction of \$525.

Even further, attorney Greco billed 1.3 hours at the rate of \$595 to administrative tasks, such as receiving a notice of case management conference, notice of case assignment, proof of summons, and client payment issues, etc. As such, the Court further reduces the fee request by \$773.50.

The Court further finds law clerk/paralegal JI's 2.2 hours analyzing the initial disclosures and document production are unnecessarily duplicative of the 1.8 hours attorney Greco spent on the same tasks, and reduces the fee request by \$550.

Attorney Greco also billed at the rate of \$595 on 0.9 hours' worth of tasks that are more properly billed by a lower billing attorney, including drafting a meet and confer letter, drafting

a case management statement, drafting a notice of posting jury fees. As such, the Court reduces the fee request by an additional \$220.50.

Further, although undoubtedly helpful, the Court does not find the 0.8 hours attorney Greco spent drafting an outline for the clients of next steps in the litigation to have been reasonably necessary to the litigation such that they are recoupable from Defendants. Thus, the Court reduces this time by \$476.

Even further, the Court does not find 6 hours estimated to be incurred in connection with reviewing the opposition, drafting the reply, and appearing for/attending the hearing to be reasonable, and reduces this to 2 hours, or a \$2,100 reduction.

However, the Court notes that Plaintiffs' attorneys' fees are likely somewhat higher than Defendants' because (1) Plaintiffs prepared two witnesses for depositions that apparently never went forward and (2) Plaintiffs had to review/analyze Defendants' document production, whereas most, if not all relevant documents were likely already in Defendants' possession.

In total, the Court reduces the fee request by \$5,735 not reasonably incurred and awards only \$23,160.50 in attorneys' fees.

II.

Costs

In connection with the memorandum of costs, Plaintiffs seek \$1,257.25, representing \$584.84 in filing and motion fees, \$150 jury fees, \$149.72 for service of process, \$101.85 for electronic filing or service, and \$270.84 in "other" fees, representing \$16.99 for "CarFax," \$85 for a hearing attendance on 10/13/25, \$2 to purchase a document from the Court, \$29.35 to One Legal for filing the Case Management Statement on 9/29/25, and \$137.50 for Smart ADR Mediation Services.

Defendants have not moved to strike the memorandum of costs or otherwise challenged the costs sought, and none of the "other" costs are expressly disallowed by statute. Therefore, Plaintiff's request for costs is granted in its entirety.

CONCLUSION AND ORDER

The

Court grants in part Plaintiff's request for attorneys' fees in the total amount of \$23,160.50. The Court further grants Plaintiff's request for costs in the full amount of \$1,257.25.

Further,

the Court will enter the proposed Order lodged on May 19, 2025 in conformity with the ruling.

The

Court will enter the (proposed) Order granting in part the request, and orders Plaintiff to provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 21, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court